

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201504109	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 05/02/2015 6:30 AM	Location of Incident: § 87(2)(b) 75th Precinct stationhouse	18 Mo. SOL 11/2/2016	Precinct: 75
Date/Time CV Reported Fri, 05/22/2015 9:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/22/2015 9:53 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT3 Paul Ortiz	00607	943634	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . Officers	Discourtesy: At § 87(2)(b) in Brooklyn, officers spoke rudely to § 87(2)(b)	B . Officer(s) Unidentified
C . DT3 Paul Ortiz	Discourtesy: At § 87(2)(b) in Brooklyn, Det. Paul Ortiz spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . DT3 Paul Ortiz	Abuse: At § 87(2)(b) and the 75th Precinct stationhouse, Det. Paul Ortiz refused to show a search warrant to § 87(2)(b)	D . Unsubstantiated

Case Summary

On May 2, 2015, at approximately 6:00 a.m., officers, including Det. Paul Ortiz, from Narcotics Borough Brooklyn North entered and searched § 87(2)(b) in Brooklyn (**Allegation A**). § 87(2)(b) who was staying in the apartment at the time of the search warrant, heard officers screaming, “Get the fuck down on the floor, everybody get the fuck down!” as they entered the apartment (**Allegation B**). While being handcuffed, § 87(2)(b) asked Det. Ortiz if there was a warrant and Det. Ortiz replied to him, “I don’t have to show you shit.” (**Allegations C and D**). § 87(2)(b) was arrested as a result of the incident and brought to the 75th Precinct stationhouse. While at the stationhouse, § 87(2)(b) again asked Det. Ortiz for a search warrant and was never shown one (**Allegation D cont.**).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation due to § 87(2)(b)'s arrest (BR 01). A notice of claim request was sent on August 5, 2015, and the results will be added to the case file upon receipt.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (BR 03).
- Det. Ortiz has been a member of the NYPD for eight years and has had 14 previous allegations involving five cases. In CCRB 201202569, an allegations of physical force, search (of person), and stop were substantiated with charges. § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Officers entered and searched § 87(2)(b) in Brooklyn.

Officers from Narcotics Borough Brooklyn North entered and searched § 87(2)(b) pursuant to search warrant § 87(2)(b) (BR 04). Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Discourtesy: At § 87(2)(b) in Brooklyn, officers spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that upon entering, officers were screaming “Get the fuck down on the floor, everybody get the fuck down!” § 87(2)(b) was in one of the apartment’s bedrooms at the time of the officers entry and did not actually see the officers enter, but heard them (BR 05).

§ 87(2)(b) § 87(2)(b)'s niece, was also present in the apartment at the time of the incident. § 87(2)(b) was in the first bedroom of the apartment and did not see the officers enter the apartment or hear what the officers were saying when they first entered the apartment (BR 06). § 87(2)(b)'s nephews, § 87(2)(b) and § 87(2)(b) were also present in the apartment, but were not cooperative in providing a statement.

Det. Ortiz was first bunker during the search warrant and was the first officer to enter the residence. Det. Ortiz denied using any profanity, saying “Get the fuck down on the floor, everybody get the fuck down,” or hearing any other officer say this (BR 07).

§ 87(2)(g)

it is therefore recommended that **Allegation B** be closed as **officers unidentified**.

Allegation C – Discourtesy: At § 87(2)(b) in Brooklyn, Det. Paul Ortiz spoke rudely to § 87(2)(b)

Allegation D – Abuse of Authority: At § 87(2)(b) and the 75th Precinct stationhouse, Det. Paul Ortiz refused to show a search warrant to § 87(2)(b)

§ 87(2)(b) alleged that while being handcuffed by Det. Ortiz, he asked if there was a warrant and Det. Ortiz replied, “I don’t have to show you shit.” § 87(2)(b) was alone in his bedroom during this interaction with Det. Ortiz. Later, while being led by Det. Ortiz to the holding cells at the 75th Precinct stationhouse, § 87(2)(b) again asked for a search warrant and was never shown one. § 87(2)(b) was not arrested or brought to the stationhouse, and as such was not present for either allegation.

Det. Ortiz did not recall any individuals asking him or any other officer for a search warrant and noted that he had no contact or interaction with any of the individuals once they had been brought to the stationhouse. He denied every replying to a request for a search warrant with “I don’t have to show you shit,” and did not hear any other officer say this.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

Pod: 14

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date

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